

fees allegation appearing at page 6, lines 2-3 of the FAC.

The Court **GRANTS** Defendant's motion to strike as to the punitive damages allegation appearing at page 6, lines 3-4 of the FAC, with leave to amend.

Plaintiff may file and serve a second amended complaint within 20 days of notice of entry of this order.

11. 9:00 AM CASE NUMBER: C25-00437
CASE NAME: RYLAND BROOKS VS. DOES 1 TO 100, INCLUSIVE
***HEARING ON MINOR'S COMPROMISE RE: RYLAND BROOKS**
FILED BY: BROOKS, RYLAND

TENTATIVE RULING:

Summary

Petitioner Charlotte Brook's Petition for Approval of Compromise of Minor Ryland Brooks ("Minor") Claim is **granted**, as set forth below. No appearance is required at the hearing on March 18, 2026.

Background

On December 18, 2025, Petitioner Charlotte Brooks, parent and guardian *ad litem* for her son, Ryan Brooks (DOB 2/11/2012), filed this Petition through counsel Brian D. Sudano to compromise the claim that Minor had against a substitute teacher, Ms. Thomas, who works for the Defendant Brentwood Unified School District, related to an accident that occurred on January 17, 2024 at Bristow Middle School. In that incident, Minor sustained injuries including a scratch to his face when Ms. Thomas attempted to remove Minor's cell phone from him. Petitioner represents that Minor has received treatment and has fully recovered and there are no permanent injuries. The Defendants collectively offered settlement in the amount of \$5,000, of which \$3,132.10 is to be paid to Petitioner behalf of Minor. The deduction of \$1867.90 represents a deduction from the settlement to satisfy attorney's fees and costs incurred in reaching this compromise. Petitioner prepared a proposed order, which the Court will execute.

Ruling

After careful examination of the Petition and proposed orders, the Court finds good cause to approve the Petition. Accordingly, the Petition is **granted**. The Court will execute the Proposed Order Approving Compromise of Minor's Claim lodged on December 18, 2025. No appearance is required at the hearing on March 18, 2026.

12. 9:00 AM CASE NUMBER: C25-00629
CASE NAME: THELMA ELLENBERGER VS. DELTA DENTAL
***HEARING ON MOTION IN RE: QUASH SERVICE OF SUMMONS**
FILED BY: DELTA DENTAL

TENTATIVE RULING:

Summary

Defendant Delta Dental's ("Delta") Motion to Quash Service of Summons and Complaint initiated by